

		way to require a party to timely object to a notice that was not served on it. As Defendant was not served with the notice of deposition, the motion is DENIED. No sanctions are warranted. <i>Counsel for Defendant is ordered to give notice.</i>
2.	Garduno v. P.C. & RS Chao Family Limited Partnership, LP 23-1340712	Before the court is a motion by Plaintiffs to compel Walt Disney Parks and Resorts U.S., Inc. ("WDPR") and The Walt Disney Company ("TWDC") to provide further responses to Requests for Production of Documents, Set Two ("Set Two"). The Motion is DENIED, as set forth herein. Motion as to WDPR WDPR asserts that the plaintiffs' motion is time barred. The court agrees. Pursuant to <i>Code of Civil Procedure section 2030.300, subdivision (c)</i>, a motion to compel further responses to interrogatories must be filed within 45 days of service of the verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, with additional time allowed for the manner of service. On 3/26/24, WDPR served verified responses to Requests for Production, Set One ("Set One"). (Exhs. C to Opp.) This meant that the last day to file a motion to compel as to Set One was May 14, 2024. No motion to compel was filed as to Set One. Instead, on 6/25/24, plaintiffs served Request for Production, Set Two, to each of the Defendants on 6/25/24. (Exh. A to Motion; Semerjian Decl. ¶4) The court has compared Request No. 10 in Set One and finds it essentially the same as the two requests in Set Two. As the Court stated in <i>Pro. Career Colleges, Magna Inst., Inc. v. Superior Ct.</i> (1989) 207 Cal.App.3d 490, "it would be an absurdity to say that a party who fails to meet the time limits of section 2030 may avoid the consequences of his delay and lack of diligence by propounding the same question again. Such a construction of the statute would obviously encourage delay and provide no incentive to attempt to resolve any dispute with the opposing party. The Legislature has explicitly stated that unless a party moves to compel further response within 45 days of the unsatisfactory response, he waives any right to compel a further response. We hold that this means what it says, plaintiff's motion was therefore untimely."

The plaintiffs' motion is therefore untimely and the motion as to WDPR is **DENIED**. Because the motion is untimely, the court does not reach the merits of WDPR's objections.

Motion as to TWDC

Although TWDC and WDPR jointly argue that the plaintiffs' motion is time barred, it is not clear that TWDC served its responses to Requests for Production Set One on 3/26/24 as did WDPR. Instead, the proof of service shows the responses to Set One were served on 7/23/24 which is the same date as TWDC served its responses to Set Two. (See Exh. D to Hansen Decl. – ROA 123) Assuming the responses to Set One were served concurrently with the responses to Set Two, then the rationale from *Pro. Career Colleges, Magna Inst., Inc. v. Superior Ct.* (1989) 207 Cal.App.3d 490 as to the motion being untimely would not apply. Accordingly, the court will address the merits of the objections.

Although TWDC asserts numerous objections in its responses, in the Opposition it only addresses the objections that the requests are overbroad and therefore unduly burdensome. (Opp. at page 8-10) Since TWDC has failed to meet its burden to justify the other objections, they are not addressed. (See *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221)

According to the FAC, the bed bug exposure occurred on June 5 and 6 in 2022. (FAC ¶32) It is during this one night stay in Room 1429 at Disney's Paradise Pier Hotel that the plaintiffs were subjected bed bug bites. Defendant asserts that the discovery request is overbroad because it seeks discovery pertaining to all 500 rooms of the 15-story hotel as well as the common area and that as a result of the overbreadth, it is unduly burdensome. Plaintiffs offer no declaration from an expert as to why such a broad request for discovery is needed. All that plaintiffs state is that their expert will need information to opine on "notice, duty, and breach" and as to the "seriousness of the bedbug infestation." (Semerjian Decl. ¶¶15-16) However, these general statements fall short of justifying the discovery and do not explain why records from 500 rooms as well as the common area are discoverable. Further, there is no indication that plaintiffs made any attempt during the meet and confer process to narrow or modify the requests to address the overbreadth of the requests and the motion does not suggest a compromise position. Instead, plaintiff argues the objections are "meritless." (Motion at 6:27) The court disagrees.

		Accordingly, the objections by TWDC based on overbreadth and burden are SUSTAINED. The plaintiff's motion is therefore DENIED. <i>Counsel for WDPR to give notice of this ruling.</i>
3.	Mashini v. FCA US LLC 24-1405227	Before the court is Plaintiffs Washib J. Mashini and Adriana Davizon Mashini ("Plaintiffs")' Motion for an Order Establishing Admissions. The motion is denied as MOOT. Plaintiff seeks to establish admissions in Request for Admissions (Set One) propounded to Defendant on September 16, 2024. Defendant served late responses on November 26, 2024 and verifications on February 12, 2025. This leaves the question of whether those responses are in substantial compliance with <i>Code of Civ. Proc. § 2033.220</i>, which provides: "(a) Each answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) Each answer shall: (1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party. (2) Deny so much of the matter involved in the request as is untrue. (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge. (c) If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter." While nearly all of Defendant's responses include objections that were waived with the failure to timely respond, each also includes a substantive response, which admits or denies the requests or indicates Defendant lacks the ability to admit or deny after reasonable inquiry. Accordingly, the responses substantially comply with <i>Code of Civ. Proc. § 2033.220</i>, and the motion is MOOT.